

Constitution for Math and Games

Student Organization Name: Math and Games

Date Prepared: 09/18/2024

Date Amended: 08/26/2026

Article I - Name

The exact title of the organization will be "Math and Games".

Article II - Purpose

The purpose of Math and Games is to create and sustain a social space for graduate students based at the math department around boardgames. The goal is to foster community around shared interest mathematics and games. The club will hold regular meetings where members will engage in activities including but not limited to:

- playing board games
- talking about board game design and strategy
- socialize
- discuss game related math

Article III - Membership

Only currently registered students, faculty, and staff may be active members in a registered student organization. Only active members may vote or hold office. New members may join the club by attending one meeting and asking to add their email to the mailing list. Non-student, faculty or staff may still participate, however, they will be considered associate members, and will be unable to vote, hold officer positions and participate in club events or meetings without the presence of an active member.

Members are considered active if:

- They are currently registered students, faculty, or staff
- AND They have attended a meeting within the past year

Only active members may vote or hold office. Non-students who are not faculty or staff may still participate, however, they will be considered associate members, and may not participate in club events or meetings without the presence of an active member.

Article IV - Membership Removal

This organization acknowledges that they may not automatically revoke active membership in their organization without due process, at the risk of personal and/or organizational liability. This organization acknowledges that due process for allegations of [discrimination](#) against a [protected category](#) and/or sexual violence/sexual harassment (SVSH) must be reported and substantiated by the [Office for the Prevention of Harassment and Discrimination](#) *before* active membership can be revoked. This organization agrees to handle accusations of misconduct with discretion and privacy.

This organization agrees that for accusations of misconduct for reasons *other* than discrimination against a protected category or SVSH, such as a member who violates community agreements, or an officer who is not fulfilling their role description, any punitive measure up to and including dismissal, will undergo a standardized due process agreed upon in writing. If no process exists before the reporting, this organization agrees to the outlined default process below:

1. Any active member may recommend that the decision making body of the organization (hereby known as the "Executive Committee") review whether another member has committed misconduct.
2. The responding party must be notified of the specific allegations of misconduct against them within a timely manner.
3. Within a reasonable time of the accusation, the Executive Committee must call a special meeting to discuss and vote on whether no action, an improvement plan, or dismissal should be implemented.
4. The responding party must be allowed a reasonable opportunity to respond to the allegations and appeal the decision.
5. An improvement plan must be approved with $\frac{2}{3}$ vote from the Executive Committee;
6. A dismissal must be approved by $\frac{3}{4}$ from the Executive Committee.

*Please note that this process is in regards to issues within this RSO's activities and events. For issues that occurred outside this RSO, please consult with your OASIS Advisor.

**Please note that OASIS staff are responsible employees, and therefore *not* a confidential resource. However, Confidential resources on campus include:

- [PATH to Care](#) is a confidential resource on campus for sexual assault, dating and domestic violence, sexual harassment and stalking.
- [Counseling and Psychological Services \(CAPs\)](#) offers confidential mental health support to students
- [Ombuds](#) is a confidential office that students can reach out to at any time during a conflict and an Ombudsperson will listen, help you come up with next steps, and discuss other resources that might be helpful.

Article V - Officers & Elections

Elections must be held at least once a year for all positions, via email vote of the active members. The election is organized by the club president. At least one week must be given for voting.

Officer roles include, but are not limited to:

President

Vice-President

The full list of officer positions is designated by the club president.

If an officer steps down or ceases to be an active member, their position is vacated.

If an officer is derelict in their duties an email vote to remove them from office can be proposed by any other officer. At least one week must be given for voting. The position is vacated if two thirds of active members vote in favor.

Special elections to fill vacant positions may be conducted by an officer at any club meeting, via vote of the active members present.

The President and Vice-President will act on the executive committee and represent the club at any club or administrative events. Should one or both be unavailable, another officer may be designated to take their place. The President is the primary club contact and signatory, with the Vice-President acting in the absence of the President or under the President's request.

Article VI - Meetings

Meetings will be informal gatherings, with no minimum number of members in attendance to reach quorum. An officer must be present at each meeting to oversee votes or other official actions.

Article VII - Constitutional Amendments

Amendments can be proposed by any member at any time by emailing the amendment to all the club officers. The president will organize an email vote of the active members on the amendment within a month. At least a week will be given for active members to vote. The amendments are approved by a majority vote of 2/3 of active members.

All amendments, additions or deletions to this document must be filed with the OASIS Center at oasis.center@berkeley.edu, or OASIS Center at 312 Eshleman Hall.

Article VIII - Anti-Hazing Clause

We will not haze according to California State Law, Federal Law, and UC Berkeley's Code of Student Conduct.

Hazing activities can cause, or are likely to cause, physical injury, personal degradation, disgrace, humiliation, or endangering behavior resulting in psychological, mental, physical, emotional, and/or academic harm to any student or other person, or the destruction of property.

The University of California, Berkeley's Code of Student Conduct defines hazing as:

"any intentional, knowing, or reckless act, activity, or method committed by a person (whether individually or in concert with other persons) against another person or persons, including current, former, or prospective students, regardless of the willingness of such other person or persons to participate, that is committed in the course of a preinitiation, an initiation into, an affiliation with, or the maintenance of membership in, an official or unofficial student organization or other student group that:

(i) causes or creates a risk, above the reasonable risk encountered in the course of participation in the institution of higher education or the organization (such as the physical preparation

necessary for participation in an athletic team), of physical or psychological injury, including personal degradation or disgrace, and/or
(ii) the person knew or should have known was likely to cause serious bodily injury.”

Hazing is prohibited per the University of California, Berkeley, the State of California, and Federal law. Learn more on the UC Berkeley Dean of Students Hazing Laws & Policies page.

Article IV - Non-discrimination Clause

We will not restrict membership based upon race, color, national origin, religion, sex, gender identity, pregnancy (including pregnancy, childbirth, and medical conditions related to pregnancy or childbirth), physical or mental disability, medical condition (cancer related or genetic characteristics), ancestry, marital status, age, sexual orientation, citizenship, or service in the uniformed services (including membership, application for membership, performance of service, application for service, or obligation for service in the uniformed services).

Article V - Amendments Clause

All amendments, additions or deletions to this document must be filed with the OASIS Center at oasis.center@berkeley.edu, or OASIS Center at 312 Eshleman Hall.

Article VI - ASUC Sponsorship

This organization hereby wishes to seek ASUC sponsorship. This organization adopts and incorporates by reference Schedule A of ASUC Bylaw 2201, and the same as may be amended from time to time, completely and fully as part of this Constitution. This organization cannot amend this clause unless and until the ASUC has certified that this organization has ceased to be ASUC-sponsored, all ASUC property has been returned to the ASUC, access to all ASUC resources and facilities has been relinquished, and any debts, liabilities, or other responsibilities to the ASUC have been resolved. This organization will continue to be bound by any provisions specified in Schedule A for actions it took while this clause was in effect, even if this clause is amended.

Schedule A

1 This organization is organized and operated exclusively for nonprofit purposes. The property of this organization is irrevocably dedicated to the purposes specified in its primary governing document and no part of the net income or assets of this organization shall ever inure to the benefit of any director, officer, or member thereof or to the benefit of any private person.

2 This organization recognizes that current or past ASUC sponsorship or funding does not imply a guarantee of continued or future sponsorship or funding and that status as a university registered student organization does not guarantee status as an ASUC-sponsored student organization or ASUC funding.

3 The ultimate constitutional, budgetary, and policy making authority of this organization shall be vested entirely and exclusively in ASUC members, at least a majority of whom shall be undergraduate students. Only ASUC members may hold officer positions in this organization. This section shall not be interpreted to prevent non-ASUC members from holding advisory positions in the organization.

4 This organization is not a unit of the ASUC or of the University of California. Unless otherwise specified in its primary governing document, this organization shall be considered an unincorporated association organized under the laws of California.

5 All funds, facilities, and resources allocated or provided to this organization by the ASUC (including the Graduate Assembly) during the term of its sponsorship shall remain the property of the ASUC at all times. If the organization ceases to be sponsored or ceases to exist, all ASUC property and unspent funds shall be immediately returned to the ASUC (including the Graduate Assembly).

5.1 Any property [## other long term property / subscriptions] purchased by this organization using funds provided to it by the ASUC (including the Graduate Assembly) shall be the property of the ASUC. The ASUC shall retain ownership proportional to its contribution in any property purchased partially with ASUC funds.

6 This organization may use funds, facilities, and resources allocated or provided to it by the ASUC (including the Graduate Assembly) only for purposes which promote the general welfare of the student body and which are not inconsistent with the meaning of United States Internal Revenue Code section 501(c)(3).

6.1 Funds, facilities, and resources allocated or provided to this organization by the ASUC (including the Graduate Assembly) shall not be used to participate or intervene in any political campaign (including the publishing or distribution of statements) on behalf of any candidate for public office or for activities which primarily consist of carrying on propaganda, or otherwise attempting to influence legislation.

7 This organization shall follow all regulations found in the ASUC Constitution and Bylaws during the term of ASUC sponsorship.

8 All disputes involving this organization may be resolved by mandatory binding arbitration through the ASUC Judicial Council.

8.1 The ASUC Judicial Council shall operate in accordance with the ASUC Constitution and the Judicial Council Rules of Procedure.

8.2 The ASUC Judicial Council shall have the power to order any remedy it sees fit. Mandatory binding arbitration may be initiated against the organization by:

8.2.1 Any member of this organization

8.2.2 Any member of the ASUC

8.2.3 Another ASUC-sponsored organization, the ASUC, or any unit of the ASUC

8.2.4 A unit of the University of California, with the consent of the ASUC Judicial Council

8.2.5 Any other person or entity, with the consent of this organization and the ASUC Judicial Council.

9 This organization shall defend, indemnify and hold the ASUC, its officers, officials, employees and volunteers harmless from any and all claims, injuries, damages, losses or suits including

attorney fees, arising out of or resulting from the acts, errors or omissions of this organization in relation to its relationship with the ASUC, except for injuries and damages caused by the sole negligence of the ASUC.

10 All officers and authorized representatives of this organization are individually and jointly responsible for the financial obligations of the organization to the ASUC, incurred by this organization during the tenure of the officer or authorized representative. This shall include any damage or defacement of ASUC property.

11 All books and records of this organization shall be subject to inspection by the ASUC Judicial Council, ASUC Chief Financial Office, ASUC Chief Legal Officer, and ASUC professional legal counsel. These individuals may make copies and extracts of such records.

12 Upon the dissolution or winding up of this organization, its assets remaining after payment, or provision for payment, of all debts and liabilities shall be distributed to the ASUC, unless the primary governing document of the organization has specified some other nonprofit fund, foundation or corporation, which is organized and operated exclusively for charitable or educational purposes, to receive such funds. In the event that the designated organization no longer exists or has ceased to be a non-profit organization, the distribution shall be made to the ASUC.

13 This organization shall be considered dissolved if it is inactive and (a) fails to register as a student organization with the University for more than five full academic years or (b) it ceases to have any members. The ASUC shall have the authority to wind-up the affairs of this organization in such case, but shall not assume any responsibility for any debts or liabilities of this organization.

Article VII - Dissolution

If the organization is ASUC or GA Sponsored, all unspent ASUC funds shall return to the ASUC; all Graduate Assembly funds shall return to the Graduate Assembly. If the organization is defunct for five (5) or more years, any privately obtained funds (including any funds left in miscellaneous accounts) shall be donated to the ASUC.

Optional Addition:

Should more formal meeting structures be required, we will follow Robert's Rules of Order.